POLICY AND PROCEDURE

Overseas Student Transfers		
Version 1.0	Issued on **01-Jul-2026**	Review by **01-Jul-2027**
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Approval and Endorsement	Principal Executive Officer (PEO) - khalid@aiit.edu.au	
Refer to the following Legislative Frameworks:		
National Vocational Education and Training Regulator (Outcome Standards for Registered Training Organisations) Instrument 2025	**Quality Area 2: Division 1 - Information** (Standard 2.1 and Standard 2.2) **Quality Area 2: Division 5 - Feedback, complaints and appeals** (Standard 2.7 and Standard 2.8)	
National Vocational Education and Training Regulator (Compliance Standards for NVR Registered Training Organisations and Fit and Proper Person Requirements) Instrument 2025	**Division 1 - Information and Transparency** (7. Marketing and advertising)	
National Code of Practice for Providers of Education and Training to Overseas Students 2018	Standard 7 - Overseas student transfers	
Other Applicable Legislation	Migration Act 1958 Student Identifiers Act 2014	

Related Documents and/or Supporting Resources (Internal)

Australian International Institute of Technology Pre-Enrolment Fact Sheets
Australian International Institute of Technology Student Handbook
Australian International Institute of Technology Student Written Agreement
Form: Withdrawal from Studies Request
Letter: Letter of Offer (Conditional)
Letter: Release (Approved)
Letter: Release (Rejected)
Policy and Procedure: Attendance
Policy and Procedure: Complaints and Appeals
Policy and Procedure: Deferment, Suspension, Withdrawal or Cancellation of Enrolment
Policy and Procedure: Education Agents
Policy and Procedure: Privacy
Policy and Procedure: Refund and Pre-Paid Fees
Policy and Procedure: Student Support and Wellbeing Services
Policy and Procedure: Tuition Fees and Charges
Register (Complaints and Appeals)
Register (Course Progress - Student at Risk)
Register (Deferment, Withdrawal, Leave)
Register (Overseas Student Transfers)
Register (Tuition Fees and Charges)

Related Documents and/or Supporting Resources (External)

Statutory Declaration (Victoria)

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1. Purpose

Under Standard 7 of the *"National Code of Practice for Providers of Education and Training to Overseas Students 2018",* Registered Providers must not knowingly enrol a student wishing to transfer from another Registered Provider's program prior to the student completing "***six (6) calendar months of their Principal Course of study"***, except in limited circumstances as outlined in this policy and procedure.

Australian International Institute of Technology is entitled to determine the circumstances in which it will provide or refuse to provide a "*Release Letter"* or cancel a *"Confirmation of Enrolment (CoE)"*.

Where a student requests a transfer within the period of *"**six (6) months***" of commencement of their Principal Program, the Institute or its nominated officer will assess the request for transfer according to Overseas Student Transfer process.

Finally, students have the right to appeal any decisions made as per the "*Complaints and Appeals policy and procedure".*

2. Scope

This policy and procedure are applied to all Australian International Institute of Technology's to prospective students and enrolled international students.

3. Definitions

Application for Transfer Between Registered Providers - an application for release or withdrawal by a Student for Transfer Between Registered Providers**.**

Enrolment - Where the student has been issued with a CoE to confirm acceptance by the registered provider and is occupying a place in the CRICOS registered course for which the student was accepted and is progressing towards the completion of the course requirements. The period of enrolment includes scheduled breaks between study periods.

Overseas student - Has the meaning given in the ESOS Act.

Principal Course of Study - The principal course of study refers to the main course of study to be undertaken by an overseas student where a student visa has been issued for multiple courses of study. The principal course of study would normally be the final course of study where the overseas student arrives in Australia with a student visa that covers multiple courses**.**

PRISMS - The Provider Registration and International Student Management System (PRISMS) is the system used to process information given to the Secretary of DET by registered providers.

Student - Means an overseas student (or intending overseas student) as the context requires.

Student Default - Where an overseas student does not start a course or withdraws from a course as defined in section 47A (2) of the ESOS Act.

Study Period - A discrete period of study within a course, namely term, semester, trimester, short course of similar or lesser duration, or as otherwise defined by the registered provider as long as that period does not exceed six months. See also "*Compulsory study period".*

4. General Guidelines

4.1 International Students must cooperate with Australian International Institute of Technology and attend any interviews, intervention strategy meetings or other appointments scheduled for them including in respect of support and wellbeing services provided.

4.2 Applying to Transfer Between Registered Training Providers does not preclude international students from the requirement to enrol on time.

4.3 Non-commencement and enrolment will not automatically result in a Transfer Between Registered Providers. It will however result in the student being reported via "*Provider Registration and International Student Management System (PRISMS*)" for student-initiated default non-commencement and failing to enrol.

4.4 No "*Release Letter"* will be required where:

- The student has completed at least "***six (6) calendar months****"* study in their "*Principal Course of Study".*
- The student is government sponsored and that government sponsor provides written support for the change as it considers the change to be in the student's best interests.
- Australian International Institute of Technology has ceased to be registered or the program in which the international student is enrolled has ceased to be registered.
- Australian International Institute of Technology has a regulatory sanction imposed on it that prevents the student from continuing their "*Principal Course of Study".*

5. Transfer between Registered Providers - Current Students (Within the first 6 months of the Principal Course)

5.1 Transfer Process

To apply for transfer to another provider within the first "***six (6) months****"* of the student's principal course, the student must demonstrate exceptional circumstances justifying the transfer request.

Exceptional circumstances include:

- Medical reasons e.g. recent hospital admission; serious injury; debilitating illness; severe anxiety or depression;
- Loss or bereavement e.g. death of a close family member, or close friend; family or relationship breakdown;
- Hardship/trauma e.g. recent victim of crime; sudden loss of income or employment; severe disruption to domestic arrangements;
- Educational progression problems that cannot be addressed by the provider's resources.

Subject to the above, an Application for an Overseas Student Transfer or Withdrawal from Studies on the grounds of exceptional circumstances may be demonstrated by providing sufficient specific detailed information, with relevant supporting documentation to support the Application, such as a medical certification stating in reasonable details:

- The dates of any relevant intervention strategy meeting or attendance;
- If relevant, the nature of the complaint and the treatment;
- A specific statement that in the medical or health care professional's opinion (not the student's opinion), that, because of the complaint or treatment, the student should be transferred;
- A Victorian police report or statutory declaration;
- Other relevant supporting documentation.

Finally, all documentation will be held in confidence and will be stored to ensure privacy as per the "*Privacy policy and procedure".*

5.2 **Rejected Transfers**

No Transfer will be granted where:

- The "*student study period*" has not completed "***the first four (4) weeks****"* of the principal program in which they are enrolled
- Australian International Institute of Technology or its nominated Case Manager forms the view that the student is trying to avoid being reported to the "*Department of Home Affairs (DHA)"* for failure to meet course progression requirements or for academic misconduct.
- The transfer may jeopardize the student's progression through a packaged pathway of programs and training products.
- The transfer would be detrimental to the student's future study and/or career objectives.
- The student has not accessed student support, wellbeing services or administration after having been advised to do so
- The documents provided by the student do not, in Australian International Institute of Technology or its nominated Case Manager's view, provide adequate grounds to justify the transfer.
- The student has outstanding tuition fees and/or bad debt.
- The student has not provided a *"Conditional Letter of Offer"* from another registered training provider.
- The student has not provided a "*Statutory Declaration".*
- The student has already "*defaulted*" cancelled their enrolment at Australian International Institute of Technology without permission or notification to Australian International Institute of Technology.

5.3 **Procedural Actions**

- Students should first discuss with the Student Services Manager or Academic Manager regarding their intention to transfer between providers.

- The Student Services Manager or Academic Manager should consider options to assist the student with their learning outcomes and refer the student to the appropriate support services for:

    - Academic Skills and Assessment Preparation Support;
    - Additional English Literacy Support;
    - Digital Literacy Support;
    - Mentoring and Student Support Programs;
    - Personal Counselling (External);
    - Consideration of reduction in study load.

- After this discussion, students who still want to transfer should submit to the Student Services Manager:

    - Application to Transfer Between Registered providers;
    - A conditional Letter of Offer from the new provider;
    - A Statutory Declaration explaining the reasons why they want to change;
    - Any evidence to support the information provided.

- The Student Services Manager will consult with Academic Manager when considering the student's application for admission and enrolment.

- The decision will be communicated to the international student in writing within "***ten (10) working days"*** of receipt of a completed "*Withdrawal from Studies Application Form*". The decision. and necessary forms. will be sent to the student via email which include one of the following:

    - Release Letter (Approved);
    - Release Letter (Rejected).

- The documents related to any Application will be filed on the student's file and noted in the Student Management System (Wisenet).

- If the student is granted permission to transfer between registered providers, the student should complete within "***ten (10) working days***" the "*Withdrawal from Studies Application Form*".

- If the student is not granted permission to transfer, the student has the right to access the Appeals process within "***twenty (20) working days***" of the date of notification, as per the "C*omplaints and Appeals policy and procedure".*

6. **Transfer between Registered Providers - Prospective Students** (Within the first 6 months of the Principal Course)

6.1 Prospective students, who have enrolled with another Registered Provider but later apply to study an Australian International Institute of Technology program, must provide an original "*Release Letter"* or a *"Cancelled Certificate of Enrolment (CoE)"* from their original Registered Training Provider at the time of accepting Australian International Institute of Technology's offer i.e. at the time of returning a signed "*Student Written Agreement"* and payment of tuition fees.

6.2 If any student cannot provide a "*Release Letter"* or evidence of their *"Cancelled Certificate of Enrolment (CoE)"* from their original Registered Provider, the Student Written Agreement and Tuition fee payments must not be accepted by Marketing and Recruitment or Student Services Administration departments.

6.4 If the Prospective Student is unable to provide a "*Release Letter"* or a "*Cancelled Certificate of Enrolment (CoE)"* and the circumstances are not covered by the exceptions above, the Marketing Manager or Student Services Manager will assess the specific circumstances of the prospective student and take into consideration any compelling reasons for the prospective student's desire to transfer.

6.5 Before considering any Application, the prospective student must provide evidence of a "*Cancelled Confirmation of Enrolment (CoE)"* or an official *"Release letter".*

7. **Responsibility**

The Student Services Manager is responsible for the effective implementation and management of this policy as well as provision of information on how to resolve complaints of breaches of this policy.

Any complaints or breaches in relation to this policy should be reported to the Chief Executive Officer (CEO) in person or by email to ceo@aiit.edu.au.

8. **References** (Key)

Source	Document Title	Version - Date
External	ASQA - "Obligations when facilitating student transfers" https://www.asqa.gov.au/esos-providers/esos-requirements/obligations-when-facilitating-student-transfers#	(Accessed 01/07/2026)
	Australian Consumer Law (ACL) https://consumer.gov.au/legislation/current-legislation	(Accessed 01/07/2026)
	Commonwealth Ombudsman https://www.ombudsman.gov.au/	(Accessed 01/07/2026)
	Data Provision Requirements 2012 https://www.legislation.gov.au/Details/F2013L00160	2012
	Department of Home Affairs https://www.homeaffairs.gov.au/	(Accessed 01/07/2026)
	Education Services for Overseas Students Act 2000 https://www.legislation.gov.au/Details/C2017C00263	2000

	Education Services for Overseas Students (ESOS) Regulations 2019 https://www.legislation.gov.au/Details/F2016C00681	2019
	Migration Act 1958 https://www.legislation.gov.au/Series/C1958A00062	1958
	the National Code of Practice for Providers of Education and Training to Overseas Students 2018 (National Code 2018)	2018
	National Vocational Education and Training Regulator (Outcome Standards for Registered Training Organisations) Instrument 2025 https://www.legislation.gov.au/F2025L00354/asmade/text	(Accessed 01/07/2026)
	National Vocational Education and Training Regulator (Compliance Standards for NVR Registered Training Organisations and Fit and Proper Person Requirements) Instrument 2025 https://www.legislation.gov.au/F2025L00355/asmade/text	(Accessed 01/07/2026)
	NCVER Glossary of VET https://www.voced.edu.au/vet-knowledge-bank-glossary-vet-terms	(Accessed 01/07/2026)
	Privacy Act 1988 https://www.legislation.gov.au/Details/C2020C00025	1988
	Standard 7: Overseas student transfers https://www.education.gov.au/esos-framework/resources/standard-7-overseas-student-transfers	(Accessed 01/07/2026)
	Student Identifiers Act 2014 https://www.legislation.gov.au/Details/F2014L01204	2014
	Unique Student Identifier (USI) Scheme Privacy Notice https://www.usi.gov.au/documents/privacy-notice-when-rto-applies-their-behalf	(Accessed 01/07/2026)

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